NYAYKOSH

CONSUMER PROTECTION IN INDIA

An AI-generated educational guide for common consumer problems, remedies, complaint preparation and evidence

Category	1 of 12 — Consumer Protection
Jurisdiction focus	India; includes practical notes relevant to Maharashtra
Primary legislation	Consumer Protection Act, 2019, read with applicable rules and regulations
Prepared	20 October 2026

Important: This guide is AI-generated for learning and information retrieval. It is not an official government publication, does not replace the current statute or legal advice, and may not reflect every amendment, notification, court ruling or local procedure. Always verify the current official text before relying on a section or filing a complaint.

How to use this guide

This document is designed as a supplementary knowledge document for NyayKosh. It explains common consumer-protection concepts in plain language and points to the legal provisions most likely to be relevant. The statutory text and official notifications remain the primary authority.

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Quick caution about legal eligibility

A person is not automatically a “consumer” for every purchase. The Act’s definition generally excludes goods bought for resale or a commercial purpose, subject to statutory wording and exceptions including certain use for earning a livelihood by self-employment. Whether agricultural inputs bought for farming qualify in a particular dispute can be fact-sensitive. Do not promise that a farmer is eligible or that compensation is guaranteed; examine the purchase, use, purpose, parties and applicable decisions.

1. What consumer protection covers

The Consumer Protection Act, 2019 provides a framework for consumer rights, consumer dispute redressal commissions, product liability, action against unfair trade practices and misleading advertisements, and related enforcement mechanisms. The precise remedy depends on the facts, statutory conditions and evidence.

Common situations include:

- **Defective goods:** A product does not meet required quality, quantity, purity, standard or other legally relevant requirements.
- **Deficient services:** A paid service is not performed to the standard or manner required by law or contract, subject to the Act’s definition and exceptions.
- **Unfair trade practice:** A trader uses a practice falling within the statutory definition, such as certain misleading representations.
- **Misleading advertisements:** An advertisement contains a false or misleading representation within the Act and applicable guidelines.
- **Product liability:** A claim for harm caused by a defective product, where the statutory requirements for liability are met.
- **Online purchases:** Relevant duties and complaint mechanisms may also arise under applicable e-commerce rules.

2. Common problem types

Problem	Potential issue to investigate	Evidence to preserve
Defective product	Defect, standards, warranty, seller/manufacturer responsibility	Invoice, packaging, serial/batch number, photos, test report
Refused refund/replacement	What was promised, applicable policy and statutory remedy	Order, payment proof, messages, return/refusal record
Faulty service	Service terms, deficiency and resulting loss	Contract, receipt, service report, correspondence
Misleading claim	Exact representation and why it may be misleading	Advertisement screenshot, date, URL, brochure, invoice
Product caused harm	Defect, harm, causation and applicable liability requirements	Product, medical/technical reports, photos, expert evidence
Online seller dispute	Seller/platform role and applicable e-commerce rules	Listing, seller details, order ID, emails, payment record

3. Key provisions of the Consumer Protection Act, 2019

The following is a practical orientation, not a substitute for reading the complete current Act and relevant rules.

Section 2 — Definitions. Contains definitions used throughout the Act, including consumer, defect, deficiency, unfair trade practice and product liability. Read the precise statutory definitions before deciding whether a case falls within the Act.

Section 17 — Complaints to the Central Consumer Protection Authority (CCPA). Provides for complaints or information about violations within the CCPA's statutory remit. The CCPA's role is not identical to an individual compensation claim before a Consumer Commission.

Section 18 — Powers and functions of CCPA. Sets out the CCPA's functions relating to protection, promotion and enforcement of consumer rights, including action within its statutory powers.

Section 21 — Power to issue directions and penalties against false or misleading advertisements. May be relevant to qualifying misleading-advertisement matters. Applicability and any penalty depend on the statutory conditions.

Section 34 — Jurisdiction of District Commission. Addresses the District Commission's jurisdiction. Pecuniary jurisdiction must be checked against the applicable jurisdiction rules and current amendments, not guessed from the amount of loss alone.

Section 35 — Manner in which complaint shall be made. Provides routes for filing a consumer complaint, subject to the Act and applicable procedural rules.

Section 38 — Procedure on admission of complaint. Sets out procedure after a complaint is admitted, including steps relevant to handling the dispute and evidence.

Section 39 — Findings of District Commission. Lists orders that may be made when the Commission reaches the findings described in the section. Other Commission levels have corresponding provisions in the Act.

Section 69 — Limitation period. Generally provides a two-year period from the date on which the cause of action arises, subject to the statutory power to condone delay for sufficient cause. Verify how limitation applies to the specific facts.

Sections 82–87 — Product liability. Chapter VI addresses product-liability actions and the circumstances in which manufacturers, product service providers or product sellers may be liable, subject to the exact provisions and exceptions.

4. Remedies a Consumer Commission may order

Section 39 includes possible directions such as the following when the statutory conditions are satisfied. The available order depends on the evidence, type of complaint and Commission's findings; the list is not a promise of relief.

- Remove a defect identified in the goods.
- Replace defective goods with goods free from the defect, where the provision applies.
- Return the price or charges paid, potentially with interest as decided by the Commission.
- Pay compensation for loss or injury due to the negligence of the opposite party, where the statutory conditions are met.
- Pay compensation in a product-liability action under Chapter VI.
- Remove deficiencies in services, where applicable.
- Discontinue an unfair or restrictive trade practice and not repeat it.
- Stop offering hazardous or unsafe goods for sale, withdraw hazardous goods, or take other specified measures in circumstances covered by the Act.
- Pay costs or provide other relief specifically authorized by the Act and supported by the Commission's order.

Important distinction

A consumer complaint, a CCPA complaint, a product-liability action and a regulatory complaint to an industry-specific authority are not interchangeable. They can have different purposes, procedures and available remedies. A regulator may investigate product standards even where the consumer's individual compensation route requires separate assessment.

5. Product liability

Sections 82–87 form Chapter VI of the Act. Section 83 addresses product-liability actions; Section 84 addresses liability of product manufacturers; Section 85 addresses liability of product service providers; Section 86 addresses liability of product sellers; and Section 87 provides exceptions. Read the complete applicable provisions together.

Section 84: examples of manufacturer-liability grounds

- The product contains a manufacturing defect.
- The product is defective in design.
- There is a deviation from manufacturing specifications.
- The product does not conform to an express warranty.
- The product lacks adequate instructions for correct use or warnings against improper or incorrect use, as described in the provision.

These are statutory grounds, not a finding that any one of them exists in a particular case. The full section contains further conditions, and Section 87 contains exceptions. A claim must be assessed against the complete text and facts.

Proof and causation

A claimant may need to establish the relevant defect or other statutory basis, harm, and a legally sufficient connection between the product and the harm. Product testing, expert evidence, timing, storage conditions, instructions, alternative causes and the identity of the product can all matter. Do not state that crop damage proves a fertilizer defect by itself.

6. How to prepare a consumer complaint

1. **Identify the transaction.** Record the date, product/service, seller or service provider, manufacturer where known, amount paid, invoice number and the purpose for which the product was acquired.
2. **Preserve the evidence.** Keep original bills, packaging, batch/lot numbers, photographs, videos, warranty documents, advertisements, product labels and all communications. Do not alter or discard the product if it may need inspection.
3. **Describe the problem chronologically.** State what was purchased, what was promised, what went wrong, when it happened, what loss occurred, and what response was received from the seller.
4. **Make a clear request.** Identify the relief sought—such as refund, replacement, repair, compensation or another legally available order—and explain how the requested amount is calculated. Avoid unsupported estimates.
5. **Check eligibility, jurisdiction and limitation.** Verify the definition of consumer, applicable exclusions, the correct Commission, current pecuniary/territorial rules, limitation and filing requirements.
6. **Consider first-line grievance channels.** A written complaint to the seller/manufacturer or relevant grievance mechanism can create a record. It does not necessarily replace or extend statutory limitation.
7. **File through the appropriate official channel.** Check current government instructions for filing before the relevant Consumer Commission, including any applicable e-filing portal, fees, format and required documents.
8. **Keep proof of submission.** Retain the complaint, annexures, acknowledgements, case number and subsequent orders.

Limitation warning

Section 69 generally refers to two years from the date the cause of action arises. Do not assume that negotiations, a customer-care complaint or a regulatory report automatically pauses this period. If a deadline may be close, obtain qualified legal help promptly.

7. Evidence checklist

- Invoice, cash memo or other proof of purchase
- Payment record, bank/UPI transaction or receipt
- Product packaging, label, batch/lot number, manufacturing/import details and instructions
- Photographs/videos of the product and observed problem, with dates where possible
- Warranty, guarantee, advertisement, product listing or seller representations
- Written messages, emails, complaint numbers and seller/manufacturer responses
- Independent technical, laboratory, medical or expert report, where relevant and lawfully obtained
- Evidence of loss and calculation of the amount claimed
- Names and contact details of witnesses, where appropriate
- A dated chronology and copies of all documents filed

8. Farmer scenario: suspected defective fertilizer

Example facts: a farmer buys fertilizer from a local dealer, applies it to a soybean crop, and later observes crop damage. The farmer suspects that the fertilizer was defective or substandard.

Practical first steps

1. Keep the invoice, fertilizer bag, label, batch number and any unused fertilizer. Photograph the packaging and affected crop.
2. Record the purchase date, application date, crop/field details, dosage, storage conditions, weather and when symptoms first appeared.
3. Contact the appropriate local agriculture/fertilizer authority promptly to ask about official inspection, sampling and laboratory testing procedures. Do not rely only on a self-collected sample if an official sample is required for enforcement.
4. Ask an agricultural expert or qualified officer to assess other possible causes, such as disease, irrigation, weather, dosage or application method.
5. Notify the dealer/manufacturer in writing and retain the response. Avoid making public accusations before the evidence is assessed.
6. Check the applicable Fertiliser (Control) Order, amendments and Maharashtra procedures. Separately assess whether the facts support a consumer complaint and whether the farmer qualifies as a consumer under the Act.
7. Preserve evidence of the alleged loss, such as acreage affected, crop records, input costs, yield estimates and expert assessment. A loss estimate alone does not prove legal causation.

A farmer's eligibility needs special care

The Consumer Protection Act's consumer definition includes exclusions for goods obtained for resale or a commercial purpose, subject to its wording and recognized exceptions. Whether fertilizer bought for cultivation qualifies in a particular claim can be legally fact-sensitive. NyayKosh should not promise that every farmer can bring a consumer complaint. The applicable agricultural regulatory route may remain relevant regardless.

What the guide cannot conclude from these facts

- It cannot conclude that the fertilizer was defective without appropriate evidence.
- It cannot conclude that the fertilizer caused the crop damage without assessing causation and alternative explanations.
- It cannot guarantee a refund or compensation.
- It cannot determine eligibility, forum, limitation or the correct defendant without more facts and current law.

9. Common mistakes to avoid

- Assuming every buyer automatically qualifies as a consumer under the Act.
- Treating the product's age or a printed date as proof of a legal defect without checking the product rules and label.
- Assuming that crop damage by itself proves defective fertilizer or proves causation.
- Demanding a fixed amount without explaining and documenting the loss.
- Relying on an outdated or incomplete version of an Act or Order.
- Confusing a regulatory enforcement complaint with an individual compensation claim.
- Submitting original evidence without retaining copies and proof of submission.
- Using an AI-generated guide as if it were an official legal instrument.

10. Questions NyayKosh should ask before answering

- What product or service was purchased, from whom, on what date, and for what purpose?
- Do you have an invoice or other proof of purchase?

- What exactly is the defect or problem, and when was it discovered?
- What loss or injury occurred, and what evidence supports it?
- Has the product been inspected or tested by an appropriate laboratory or expert?
- Have you contacted the seller, manufacturer or relevant regulator? What response did you receive?
- Which state and district are involved?
- What remedy are you seeking, and has any complaint or case already been filed?

NyayKosh response rule

If key information is missing, ask focused follow-up questions or provide a conditional explanation. If the indexed documents do not support a conclusion, state the gap and identify which authoritative source or fact is needed. Cite document title, section, page and version whenever available.

11. Retrieval metadata and official sources

Suggested metadata for this guide

Field	Value
category	consumer_protection
jurisdiction	India; Maharashtra notes where relevant
document_type	AI-generated educational guide
primary_law	Consumer Protection Act, 2019
topics	defective goods; refunds; services; unfair trade practices; misleading advertisements; product liability; complaint preparation
authority_level	secondary explanatory material — not primary law
review_status	verify against current official law before deployment
generated_date	2026-10-20

Official sources to verify

- **Department of Consumer Affairs — Consumer Protection Act and related rules:** https://consumeraffairs.gov.in/pages/consumer-protection-acts
- **Department of Consumer Affairs — Act and rules page:** https://consumeraffairs.nic.in/acts-and-rules/consumer-protection/consumer-protection
- **National Consumer Helpline:** https://consumerhelpline.gov.in/ — verify current contact and process before advising a user.
- **e-Jagriti (consumer case filing/services):** https://e-jagriti.gov.in/ — verify current availability, jurisdiction and filing instructions.
- **India Code:** https://www.indiacode.nic.in/ — use to locate authoritative legislation where available.

Additional note on currency

Consumer rules, jurisdiction thresholds, filing systems and official procedures can change. The Department of Consumer Affairs lists rules, regulations and guidelines under the Act. For example, the Department reported Consumer Protection (E-Commerce) Rules amendments in 2026 with an effective date of 1 January 2027. That e-commerce amendment may not affect every issue in this guide, but it demonstrates why version dates must be checked before use.

This guide was created as a secondary explanatory document for the NyayKosh project. For a legal filing or case-specific decision, consult the current official law and a qualified legal professional or appropriate legal-aid service.